# Montgomery County District Court

Cause No. 2025-CV-0010

David Frost, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

## Plaintiff's Original Petition

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| **Filed:** | June 22, 2025 |
| **Plaintiff's counsel:** | Colleen Orr, Conley & Stephenson Law Group |

Parties

Plaintiff David Frost is an individual residing in Texas who was the driver of a vehicle involved in the collision described below. Defendant is the automobile insurance company that issued the policy under which Plaintiff sought coverage for the resulting injuries and losses. Defendant may be served through its registered agent for service of process in the State of Texas.

Facts

On November 29, 2024, Plaintiff was lawfully operating his vehicle on a public roadway in Houston, Texas. A second vehicle traveling in the opposite direction crossed the center line and struck Plaintiff's vehicle in a low-speed head-on collision. The impact deployed airbags and caused Plaintiff's body to be thrown forward and against the steernig assembly. Plaintiff promptly reported the collision to the responsible parties and to Defendant, and submitted the information required under the policy.

Negligence

Defendant owed Plaintiff a duty to investigate claims in good faith, to pay benefits owed under the policy, and to refrain from unreasonable delay in handling Plaintiff's claim, as well as the duties imposed by the Texas Insurance Code. Defendant breached these duties by failing to conduct a reasonable investigation, by delaying payment of amounts due without a reasonable basis, and by failing to affirm or deny coverage within a reasonable time after receiving proof of loss.

Damages

As a direct result of the collision and Defendant's conduct, Plaintiff suffered a fracture of the wrist, required medical treatment and immobilization, and incurred medical expenses, lost wages, and pain and suffering. Plaintiff seeks actual damages, statutory damages, attorney's fees, and court costs. Plaintiff demands judgment against Defendant in the amount of $248,000.00, together with pre-judgment and post-judgment interest as allowed by law.